

02:00 PM **LINE 8**

24-CLJ-01348

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. ARTURO RODRIGUEZ

PORTFOLIO RECOVERY ASSOCIATES, LLC
ARTURO RODRIGUEZ

WILLIAM BLISS
SCOTT MAURER

Defense Motion for Summary Judgment

TENTATIVE RULING:

Initially, the court notes that defendant Arturo Rodriguez provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 [the Notice “must specify” the location of the hearing].)

Defendant’s unopposed motion for summary judgment as to the February 28, 2024 complaint filed by plaintiff Portfolio Recovery Associates, LLC, is **GRANTED**.

Defendant’s request for judicial notice of two exhibits is **GRANTED**. (Evid. Code §§ 452, 453.) The court takes judicial notice of the records in its own files. (*Id.*, § 452, subd. (d).)

No evidentiary objections have been filed.

A. Background

This is a debt collection matter. The complaint filed on February 28, 2024, pleads two common count causes of action — account stated and open book account. Defendant filed the instant motion for summary judgment on the basis that both the claims alleged in plaintiff’s complaint are barred by the applicable statute of limitations.

B. Legal Standard

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*)). The motion shall be granted if all the evidence submitted shows no triable issue as to any material fact and moving party is entitled to judgment as a matter of law. The court shall consider all evidence set forth, except evidence to which objections are sustained, and draw “all inferences reasonably deducible from the evidence” and uncontradicted by other inferences or evidence. (Code Civ. Proc. § 437c, subd. (c).) “The court’s sole function on a motion for summary judgment is *issue-finding*, not issue-determination. The judge must simply determine from the evidence submitted whether there is a “triable issue as to any material

fact.” [CCP § 437c(c) (emphasis added).] (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group June 2026 Update) ¶ 10:270.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519 (*Scalf*)). “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) The movant “has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (*Scalf, supra*, at p. 1520.)

Once defendant has met their burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, plaintiff “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (*Ibid.*) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

A “book account” is “a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner and is (1) in a bound book, or (2) on a sheet or sheets fastened in a book or to backing but detachable therefrom, or (3) on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner.” (Code Civ. Proc., § 337a.) A book account is “open” where a balance remains due on the account. (*Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 969 (*Lauron*), citing *Interstate Group Administrators, Inc. v. Cravens, Dargan & Co.* (1985) 174 Cal.App.3d 700, 708.) “The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600; see also *Maggio, Inc. v. Neal* (1987) 196 Cal.App.3d 745, 752.)

C. Discussion

Under both causes of action pled in the complaint, the statute of limitations begins to run from the date of the last item entered in the book account. (*Lauron, supra*, 8 Cal.App.5th at p. 966.) The statute of limitations for each cause of action is four years. (Code Civ. Proc., § 337, subd. (b).)

“When a creditor charges off a debt, the creditor declares the debt is unlikely to be collected and takes a tax deduction on the debt. [citation] This typically occurs after six months of nonpayment by the debtor. [citation] Although it has been deemed uncollectible by the original creditor, the debt remains legally valid after a charge-off.” (*Cavalry SPV I, LLC v. Watkins* (2019) 36 Cal.App.5th 1070, 1075, fn. 1, citations omitted.)

Defendant contends that he is entitled to judgment as a matter of law because his credit account was charged off on February 6, 2019, yet plaintiff did not file its complaint until February 28, 2024. (Def’t. Sep. Statement Undisputed Material Facts [SSUMF], ¶¶ 1, 2 & 6.) Because the motion is unopposed, if defendant meets his burden to show that the statutory period in which plaintiff had to file his action has expired, he meets his initial burden.

The complaint alleges the date of the last payment on the credit account was March 22, 2022. (SSUMF No. 7.) In his declaration, defendant asserts that he neither made a payment in or around March of 2022 nor directed anyone else to make such a payment. (Declaration of Arturo Rodriguez iso MSJ, ¶ 2.) Furthermore, defendant had no knowledge of any such payment being made. (*Ibid.*)

Exhibit A to the declaration of defense counsel Scott Maurer filed in support of this motion, a letter from plaintiff’s counsel dated September 14, 2023, indicates that at some point between February 6, 2019 (the date of the charge off) and the date of the letter, September 14, 2023, either a payment or a credit toward the debt of \$595.88 was made.

An account stated and an open book account exist between a creditor and a debtor. The original creditor on this account was Synchrony Bank. The account stated and open book account were with Synchrony Bank. (See RJN, exh. C [Decl. iso Default Judgment], ¶¶ 8.b & h.1, and exhs. B & C thereto.) Accordingly, the “last item” in the account between creditor and debtor was in January 2019. (See *id.*, exh. C.)

Plaintiff Portfolio Recovery Associates, LLC is a debt buyer. As such, it did not extend credit to defendant. Any credits or payments made after the account was charged off and sold by the original creditor were made to plaintiff Portfolio Recovery Associates, LLC and not to the original creditor. The last item in the account was entered in or about January 2019 and the complaint was filed more than four years later, on February 28, 2024. Accordingly, the complaint is time-barred. The case is therefore dismissed with prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 9**

25-CIV-03331

DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DEFENDANT LEAH BOTTINI'S DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Leah Bottini's demurrer to plaintiff Diana Dunkelis's first amended complaint (FAC) is SUSTAINED with and without leave to amend, as set forth below.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Thirteenth Cause of Action for Harassment (Gov. Code, §12940, subd. (j))

The elements of a cause of action for harassment of an employee under the Fair Employment and Housing Act (FEHA) are as follows: (1) the plaintiff must be an employee, applicant, unpaid intern or volunteer, or a person providing services pursuant to a contract who belongs to a protected class, (2) the plaintiff must show that they were subjected to unwelcome harassment, (3) the harassing conduct must be because of the plaintiff's membership in a protected class, (4) the harassment must be sufficiently severe or pervasive to alter the conditions of the victim's employment and create a hostile or abusive working environment, and (5) the standard for employer liability depends on who committed the harassment with an employer being strictly liable for harassment committed by a supervisor or agent while harassment by a non-supervisory co-employee is unlawful only if the employer, or its agents or supervisors, knew or should have known of the conduct and failed to take immediate and appropriate corrective action. (Gov. Code, § 12940; *Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202-203; *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228.)

Plaintiff alleges that defendant Leah Bottini discriminated against her based on plaintiff's age by interfering with plaintiff's computer, slowing it down, failing to give plaintiff the password to plaintiff's new computer, disorganizing the firm's blue files which plaintiff was responsible for maintaining, failing to inform plaintiff of the arrival of medical records, failing to forward subpoenas, locking plaintiff out of filing cabinets and storage rooms, hiding client documents, locking away supplies, converting settlement documents to password protected pdfs so that plaintiff could not access them, changing factual information in documents created by plaintiff so that the information was incorrect, throwing out redacted client documents and serving unredacted documents on opposing counsel, taking plaintiff's newly purchased office chair, turning off the heat when leaving the office while plaintiff was still working, and making false statements about plaintiff to clients. (FAC, ¶ 54.) Plaintiff alleges that Bottini did these
